Grant Smith Ellis Court Reporting Archive

October 28, 2026 — Day's End Report

Half-day courtroom reporting: 8:45 AM–12:10 PM ET

Source reporting: Grant Smith Ellis (@GrantSmithEllis)

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About this report: This document reconstructs Grant Smith Ellis's contemporaneous courtroom reporting from his X posts. Posts are reproduced as retrieved and organized by witness and examination stage. It is not an official transcript and may contain reporting, retrieval, or transcription errors.

Day's End scope: The October 28 author-search pull returned 153 unique Grant-authored statuses. This report retains 125 courtroom and structurally relevant statuses through the government resting at 12:09:59 PM ET, plus four clearly separated post-court updates. It does not claim to cover later defense proceedings.

Exhibit handling: Grant's descriptions of exhibits and demonstratives are retained as text. No trial exhibit images, slides, or appendices are acquired or embedded for this date.

Preliminary Matters and Heidi Kelsch Recall

8:45:52 AM ET Good morning from inside Boston's Moakley Federal Courthouse as we begin the final day of the prosecution's case in the Sandra Birchmore and Matthew Farwell trial.

Jessica Hyde, from the John O'Keefe and Karen Read trial, has flipped and will testify against Brian Tully and John Fanning's coverup.

Live thread below. [X source]

8:47:01 AM ET Judge Casper in on the bench. We begin. [X source]

8:57:31 AM ET "Counsel, just a few things before we start; in terms of disputed exhibits, I don't know if I mentioned this yesterday, but as to Ms. Hyde, the government had identified a few exhibits this was an extraction report, 125, also 412 a PowerPoint of iPhone battery usage and another extraction report, 417, I am assuming 125 and 417, if the foundation is laid, will come in. Does defense need to be heard?"

"Your honor, only on the powerpoint. We object to that coming in."

"And I have looked at that, as revised. What's the objection?"

"Your honor this is Ms. Hyde's interpretation of data from Ms. Birchmore's iPhone, some parts of it are up for debate as to what the data indicates, and that is in the form of the PowerPoint, so to the extent it is an illustrative aide I ask the court take the same protocol as was taken with Dr. Smock, for example, on one page, Ms. Hyde determines how far off the video is on the surveillance camera. That is her opinion and it shouldn't come in as an exhibit. it is a PowerPoint derived from evidence, not evidence it self, thus it shouldn't come in under 107."

"Counsel for the government?"
"A majority of the powerpoint is data in the case. ms. Hyde will talk about how applications show data and times for different devices. She will then show the data in the raw form or through extraction reports, and if she did it all through raw data it would be voluminous under 10-06, there is no assumptions as to the comparisons of video and the time data, there is no assumption, it is her testimony. Depicting all of that evidence in standalone form is voluminous and it falls within 1006."

"Counsel, I'll listen to the foundation for the purposes of whether or not this is 12006 or 107 material, I understand the objection, when I looked it, not perhaps fully understanding defense's argument, I took it to be voluminous, but I'll pay particular attention to the video part of it. Counsel those are the only exhibits as to Ms. Hyde that were identified."

"Your honor, sorry, we may also show her exhibit 503 which is evidence, it's the photo of the Apple Watch on Ms. Birchmore's wrist."

"As to the first defense witness, Dr. Harris, defense identified a number of exhibits, The first one is 272 which is Ms. Birchmore's application, which is already in. There are also 674, 675, 676, 677, 678, 679, 680, those are...I have looked at all of them. I will summarize them as various Massasoit emails and reports of concern. I think one, 677, is a no contact order. That is 677, Y-11, 678, 711, is the only document I saw authored by the witness. 679, A-12, is the first page is the same as 678. 680 makes reference to the cross restraining orders (Killroy). Counsel, putting aside the 401 objection for the moment, I was focused on the hearsay exception and objection. I guess I'll hear from the defense, I know that you were citing the public records exemption, 806 (6) (a) (iii), counsel I'll hear defense on those."

"Your honor, just to be clear, we don't intend to admit all of these. This is just the entire record. It's kept in the regular course of business. We just wanted the court to have all of it. We don't intend to introduce all ofiit. Nothing about the no contact order or the cross restraining orders involving Mr. Killroy."

"Counsel, having looked at 806 (6) (a) (iii), and the case law, US Vs Pagan-Santini, 1 circuit 2006, which cites US V Mackey 117 F.3rd, 1 circuit 1997, I see the section 12 report as different from these reports in one very critical way. I don't these reports, a lot of them, are campus police reports. I don't think they contain factual findings, as the 1st circuit has warned, this exception doesn't allow the admission of third party hearsay which is most of the contents here. I don't envision they will come in. I made mention of Z-11 and A-12 first p[age, 678 and 679, I'm not sure there is a basis for that document to come in but I understood that Dr. Harris's testimony may reflect

statements that Sandra Birchmore made to him in regards to this self harm attempt some ideation. I also don't envision a whole cross RO issue, that in that light, I don't think 680 will come in. For that and other reasons I've stated. Just for what's that's worth counsel.." [X source]

9:04:06 AM ET "Your honor, having spoken to Dr. Harris, and I understand the Doctor has spoken to the FBI as well, I would just note Dr. Harris may need his memory refreshed on statements Ms. Birchmore made to him."

"I understand, counsel. As to the RO, I reject the government's argument about relevance. I think they have a stronger argument about this conflict with somebody's new girlfriend."

"That can be elicited without getting into new legal process. She said she tried to self harm because she saw her ex's new girlfriend..."

"No, I understand that, but in the other reports there is a lot of back and forth as opposed to any connection to what I think are the statements to Dr. Harris about her statement self harm."

"Understood your honor, and that's the primary reason for calling Dr. Harris, and Sandra Birchmore's statements fall well within the scope of the pre trial rulings, i would just posit to the extent the DOJ opens the door on cross for the basis for her apparent stress, although I think it will be obvious on direct and we will not need to go into that, but to the extent this witness has first hand knowledge of the in reaction it's relevant to Dr. Harris's state of mind."

"Your honor it's the government's position that none of these records are business records. We don't object to the testimony about Ms. Birchmore's alleged statements, but a statement of the past is not a present sense impression so the document itself is not admissible. Respectfully, Ms. Daley was conflating two different situations. There was no statement regarding self harm vis a vie the girlfriend of the ex boyfriend, those are two separate situations. So it is our position that none of these exhibits as identified, except for 272 which is already in, should be coming into evidence. Certainly they can be used to refresh recollection as needed, but even under 803 (5), assuming counsel is able to lay the foundation and fulfill the elements of that rule, the rule says only the record may only come in if offered by the adverse party, so the defense may not offer it."

"So counsel, I am refreshing my recollection myself.?"

"Laughs."

"Counsel, we'll deal with that when we get there. Maybe we'll put it on the ELMO to refresh the witness, and we have to go down recorded recollection, that road, we'll read it out loud."

"Your honor, the government moved in 369 with redactions, as a house keeping matter, and we have provided that to Ms. Cook."

"What is that email?"

"An email from Ms. Katz to Sandra Birchmore with a referral we also had Ms. Kat talk about her texts with Ms. Birchmore, exhibit 370, and we have now redacted the earlier portion and we will move to admit before we rest."

"Okay, thank you."

"Defense reserves objection on 805 (b) (6) grounds." [X source]

9:04:40 AM ET "The government will recall Heidi Kelsch for two questions, then Ms. Hyde."

"Okay, thank you counsel."

"All rise for the jury!"

Jurors entering. [X source]

9:05:30 AM ET "Good morning jurors. We will get started. We had to one recall witness by the government, briefly."

"Thank you your honor, we move to admit exhibit 370."

"Thank you, I think we should have the witness sworn again."

Whereupon the witness was resworn. [X source]

9:06:48 AM ET "Counsel, you said 370 for admission? Any objection."

"Renewed but we don't wish to be heard."

Admitted.

"Good morning what is your name?"

"Heidi Kelsch."

"What are common steps that FBI agents take in response to crime reports?"

"In a case involving a victim, I would interview that victim and any witnesses. That is a common practice among FBI agents."

"Thank you, nothing further."

"No recross." [X source]

Jessica Hyde — Direct Examination

9:07:01 AM ET "The Government calls Jessica Hyde!"

"She may be called." [X source]

9:08:57 AM ET Ms. Hyde is in all black.

Her hair is wrapped in black head covering/scarf.

She has glasses on. She smiles and says hello to Judge.

"Your name?"

"Jessica Hyde. I am a digital forensics examiner, a professor and I own a firm called Hexordia."

"What does Hexordia do?"

"Digital forensic services in cases such as this. We provide digital forensic services on site as a government contractors. We train federal, state and local examiners and we resell major industry tools." [X source]

9:09:55 AM ET "What is your educational background?"

"Undergrad is electronic engineering technologies, a bachelor of science, then a master of science in computer forensics from George Mason University."

"Did you also do another job?"

"Yes, I was also an avionics engineer in the air force and I worked on jets." [X source]

9:10:25 AM ET "What are Cellebrite and Magnet forensics?"

"Two programs used to parse artifacts and extract data from computers."

"Do you have experience with those tools?"

"Yes."

Brian A. Fogerty is on direct. [X source]

9:11:44 AM ET "What did you do at American Systems?"

"I supported the T-EDAC, and what I did there for the federal government was look at IED's from overseas, this was during the Iraq and Afghanistan war. A lot of those devices, which were circuits on boards, I reverse engineered them. I reconstrued the devices and determined the evidence from that to write relevant reports from the federal government." [X source]

9:12:04 AM ET Jessica F'n Hyde ladies and gentlemen;

"What did you do at American Systems?"

"I supported the T-EDAC, and what I did there for the federal government was look at IED's from overseas, this was during the Iraq and Afghanistan war. A lot of those devices, which were circuits on boards, I reverse engineered them. I reconstrued the devices and determined the evidence from that to write relevant reports from the federal government." [X source]

9:13:48 AM ET "What did you do at Basis Technology?"

"I was a government contractor for the National Media Exploitation Center, this is called M-DOC now, that is the location serves as a warehouse for intelligence created after 9/11 to ensure that digital evidence and intelligence from it was gathered in support of 22 other government agencies so we wouldn't have issues understanding that intelligence and it not being done in just one place. There i ran the mobile exploitation team and the mobile development teams in the analysis of national security and counter terrorism cases."

"Did you work for Magnet Forensics?"

"Yes, for five years, as a product manager. I worked directly with customers on more complex tech issues and I did novel research and presented on said research." [X source]

9:13:59 AM ET "What software do they make?"

"GrayKey and Axiom." [X source]

9:14:15 AM ET Holy. Shit.

Called it.

"What did you do at Basis Technology?"

"I was a government contractor for the National Media Exploitation Center, this is called M-DOC now, that is the location serves as a warehouse for intelligence created after 9/11 to ensure that digital evidence and intelligence from it was gathered in support of 22 other government agencies so we wouldn't have issues understanding that intelligence and it not being done in just one place. There i ran the mobile exploitation team and the mobile development teams in the analysis of national security and counter terrorism cases." [X source]

9:15:23 AM ET "Have you produced scholarship?"

"Yes."

The witness lists a litany of publication topics related to digital forensics. [X source]

9:15:53 AM ET The witness lists a number of standards working groups that she belongs to.

We only learned about half of this information during the Karen Read trial.

This woman is a G.

I called it. [X source]

9:19:23 AM ET "What is this document?"

"This is a Magnet Forensics report of Sandra Birchmore's Iphone 12."

"Can you walk us through the steps you undertake when going through data on a device like this one?"

"The first thing you do is verify the hash value. The hash value is an agltoithim represenation of a file so I can validdate the file I recieve is exactly the same, byte for byte, as what was offered to me. i match it against the hash value fr4om the data asqusition so I know I amd ealing with the right data. Then i prcoess that image in a vairitey of tools and being my nayulasis by looking at the scope of the exam. Then I look at the system aritficatys and then applications in use and then I delve further in."

"And are you familiar with S-AQL lite data bases?"

"yes, that is a method of storing data, many applications will use that kind of database to store information for example if you're using android or iPhone your contacts stored in your device that data would be stored in that kind of database in the backend and when you look at the contacts on your phone it is referencing that database." [X source]

9:20:01 AM ET "What is an Apple Watch?"

"An internet of things device that is paired with an IPhone. I can show notifications' when paired, or it tracks various health data. It functions with the phone, almost as a subset of the phone in a way." [X source]

9:20:42 AM ET "In your review of the Ihpone 12 data did you detect a paired Apple Watch?"

"Yes, a series 5 apple watch. It was stored in the database that stores Bluetooth connected devices. It also has entries stored in the health data database." [X source]

9:22:49 AM ET "So we're talking about two different devices?"

"Right."

"Are there traces of the watch that can be found on the paired cellphone?"

"Yes."

"Now, what type of data can be recorded by an Apple Watch?"

"An Apple Watch can record lots of different types of data, incoming notifications such as SMS messages, it can record voice memos, it can record incoming SMS messages, it can also record things such as health data like steps, distanced walked, heart rate."

"We both used the term paired when talking about the phone and the watch, what does that?"

"So, in order for a watch or headphones or a wireless mouse to communicate with a device, it would be the Bluetooth system, that needs to be coordinated to make them work. A phone and a vehicle entertainment system is similar. A pairing record is shared between the two devices allowing them to communicate. Then information can exchange between those two devices." [X source]

9:24:21 AM ET "How often does synching occur between Apple Watches and IPhones?"

"It depends. There is both synching that is near simultaneous such as incoming SMS messages, and then there in sporadic synching, synching in general can be triggered by an event, such as an SMS coming in, or something at specific intervals, such as checking to make sure that the watch is connected to the device." [X source]

9:25:29 AM ET "How did you learn about this pairing relationship?"

"I have worked multiple cases that involved these devices and data over the years at T-DAC. I have published research. I have taken courses. I have read articles. A variety of experience.""

"Did you make any observations as to when the last time, in this case, an Apple Watch 5 synched with Ms. Birchmore's iPhone?"

"Yes, in the healthDB_secure.squllite"

"Yes." [X source]

9:28:24 AM ET "When was the last time the devices synched?"

"11PM on 1/31/2021."

"What is a wall.db file?"

"A write head file or log."

"What is that?"

"A place where data is temporarily written before being changed in the database, now that is not just data waiting to be added it could be data waiting to be removed. An easy way to think about this is if you're in a restaurant, people waiting to get their food are seated at tables. Those are the tables of the database. One table could be for heartrate. Another for messages. Another for distance, etc. So each person at the table will order it's food, so if the first table orders a chicken sandwich and a pizza, the order is taken and the waitress asks for the order. That table has no food at that time. Then what would happen is the cooks would put in a serving area the food. At that time, that is food waiting to be served. If the food had been served, checked into the table, if the person ordering the pizza says this is the wrong item, then that item would need to be deleted from the table. So if the server bring sit back to the waiting area, that waiting area could have the pizza coming back and the burger yet to go out. So that write ahead log, at any given time until a checkpoint occurs, can have things leaving or going to the table." [X source]

9:29:26 AM ET "and the last time the watch synched to the iphone was 1/31/2021?"

"Yes."

"And did you also check the wall file to see if data from the synching was there?"

"Yes, there was no data from the wall file on Feb 1st from the watch."

"Why might an Apple Watch not synch?"

"It could not have paired via Bluetooth, either device could be in airplane mode or have communication turned off, one of the devices batteries could have died." [X source]

9:31:10 AM ET "Have you tried to do forensic extractions of an Apple Watch?"

"Yes, in order to get data from the watch, you have to connect the data port. if you connect the watch band, under one side there is a small cover that can be removed with a small tool. once you remove the cover there are two circuit pads. Then you need a pool that connects the pad. One is called an IBUS the other is a brush tool. Either one of those tools can be used to connect physically to the hardware then you can use software to get the data. That software, for a series 5, is called MobielEdit which can communicate when the password is known with the Apple Watch. The watch must be unlocked to make this work and it must be powered on." [X source]

9:33:36 AM ET The witness describes testing on a test Apple Watch and how she got data from the test watches.

"What health data did you get from the watch?"

"I got data from the original phone it was paired with, then i walked around my office with the watch and the phone powered on, and then I was able to obtain from the phone the apple health data. An Apple Health data...

"Turn that off. Now. That sound."

Rachel Rollins was just ejected from the courtroom because her phone started playing loud.

Two U.S. Marshalls swarmed her and she is now gone. [X source]

9:34:08 AM ET Rachel Rollins was just ejected from the courtroom in the Sandra Birchmore and Matthew Farwell trial, we believe, because her phone started playing loud sounds in the middle of Jessica Hyde's testimony.

Two U.S. Marshalls swarmed her and she is now gone. [X source]

9:34:52 AM ET "While we know Apple Health data is stored on the watch, from the logical extraction that does not include things like steps or heart rate, but when we do a full extraction from the paired phone, then that phone has that health data that was not on the watch." [X source]

9:35:45 AM ET "So, the watch did not have data like steps and heartbeat?"

"It does have some metadata about that data, such as what phone it is paired with, but the actual interesting health data that includes heart rate and steps is not included in that logical acquisition but was acquirable from the phone." [X source]

9:36:57 AM ET "And that was the test you did around October 1st?"

"Yes."

"Did you then attempt to use the same process to attempt to acquire data from an Apple Watch Series 5 in this case?"

"Yes."

"Now who attended this attempt to get the data?"

"Two FBI agents brought the data to the office to maintain chain of custody, and a defense investigator, all of them came to Hexorida lab in upstate New York for this acquisition." [X source]

9:37:38 AM ET "What does exhibit 503 show?"

"This is the black Apple Watch, with the black band, and it appears it was the one brought to my office." [X source]

9:39:04 AM ET "What has been your experience as to the ability of digital forensic examiners to get more data as time passes?"

"Well, often times there is not a software to get information from the latest versions of an OS. Tools may not yet support it. It is a game of cat and mouse. Eventually the tools will support it. Sometimes we have to wait for commercial support, or we will only have a logical extraction and later a full file system, or sometimes we can only do the extraction if we know the pin or passcode but sometimes we can later do that without such a pin or passcode." [X source]

9:41:44 AM ET "When the FBI agents delivered this Apple watch to you, what did you do?"

"Well, the first thing that happened was the package was opened in front of everyone by the FBI agents."

"Allow me to focus you, did you try a passcode?"

"Yes, we had to apply power and then, in a Faraday Box (because a phone was brought in as well, so we wanted to stop the phone and watch from communicating, we wanted it in the original state it was found), and I was using Faraday gloves to do the extraction. After it was powered on and connected to a cable through the Faraday Box and then to my computer, then I turned on the software, began the acquisition and I tried a passcode when the software prompted me to do so."

"Once a passcode was entered successfully what did you do next?"

"I continued through the software prompts until the data extraction was complete."

"What was the nature of the ewxtraction?

"A logical acquisition. So the data had no step or heart data included." [X source]

9:42:51 AM ET "What did you do next?"

"We all agreed that the next logical step was to allow me to introduce the phone into the Faraday environment, the same enclosure, and we then let them both sit on and synch for some time, in hopes that two devices would pair. Then after some time we went in and tried to tell the devices to communicate. We made sure all of the devices were on in an attempt to get them to synch. That is similar to what I had done in the test environment." [X source]

9:44:08 AM ET "What did you do next?"

"We took a second full file system extraction of the phone."

"So you paired the watch and the phone, they communicated and then did you acquire data from the phone?"

"Yes."

"When you got data from the phone what if any apple health data did you find from Feb 1, 2021?"

"Unfortunately none. There was not additional data from Feb 1st." [X source]

9:46:07 AM ET "I'd like to pull up for the witness and counsel exhibit 412. Ms. Hyde do you see what has been marked 412?"

"Yes."

"Is that a PowerPoint presentation?"

"Yes, I created this presentation."

"What device is it related to?"

"The IPhone 12 in evidence."

"How much data is on that phone?"

"It's hard to reference. Millions of artifacts. If you were to visually depict all of the data and the various application elated device on that device how many pages would it take?"

"1000's of pages easily, It would be voluminous."

"What about just the period of Feb 1st through Feb 4th, 2021, if you depicted all of the data from that time from the phone how voluminous would it be?"

"100's of pages. It would be a lot of data. Incredibly voluminous." [X source]

9:47:39 AM ET "Did you focus on events between 7:45 and 7:55am?"

"Yes."

"Did that review relate to particular applications and searches conducted on the phone on Feb 1st?"

"Yes, there were several apps open at that time. Text messages, FB, FB messenger and the safari web browser."

"Before we get into the substance of that I move to admit exhibit 412."

"Counsel, other than the issue raised, any other?"

"I object to this as a full exhibit. No objections as visual aide."

"Based on the foundation, counsel I think the requirements of 1006 have been met. Counsel, why don't we take it page by page because I think there was one matter related to something Ms. Daley mentioned before we began with the jury."

"Understood your honor." [X source]

9:48:08 AM ET "Page 4 for the witness."

"Any objection as to this page?

"Yes."

"In a word."

"Misleading."

Sidebah! [X source]

9:52:52 AM ET "This may be admitted and published."

"I thank your honor, it is page 4. Ms. Massie, can we zoom in on the graph in the middle of the page. Ms. Hyde did you create this graph?"

"Yes, this graph shows information as to what applications were in use. There are 4 artifacts depicted here. One is application focus, that is which application is in the foreground that a user would currently see if they were looking at the phone. Application usage is the application being utilized. Safaris history which shows when entries are being recorded or browsed in Safari, and safari search which shows when something was search. This shows the flowing order of operations from 7:45am to 7:55am on feb 1, 2021." [X source]

9:53:50 AM ET "So the grayed out area is from before 7:45AM?"

"Yes, and after 7:55am, and there were applications in use during that period but that was not depicted on this graph."

"When application focus and usage are the same what does that mean?"

"In this instance, you can see here the same application in focus is the same application used at that time." [X source]

9:55:06 AM ET "What are the colored bars?"

"That is the application identified by it's ID. It doesn't call Facebook, it calls it by it's bundle ID. That is coordinated with each color on the graph."

"What does this show about 7:45am about the Iphone opening applications at that time?"

"Facebook messenger, then a brief pause, then use of Facebook, then a move from Facebook into Safari, then Safari into SMS, then continued use between SMS and Facebook and then at the end of this period some use of Instagram." [X source]

9:55:28 AM ET "What is Safari?"

"The default browser on Apple."

"What is SMS?"

"Short message service." [X source]

9:57:48 AM ET "What is page 5?"

"This is the same image from the previous screen but zoomed in."

"What is on the graph on the right?"

"We see each application source. So Facebook messenger is in used from 7:45:04 until 7:45:20, there's then a pause in active use, and then at 7:45:53 to 7:49:49, Facebook is the application in focus and use. Then, a second later, at 7:49:50 there is movement to Safari and Safari is then in use until 7:50:41, then we can see we have two searches from the Safari search, one for purple ribbon meaning and then a search at 7:50:37 for what color is the suicide ribbon, then at 7:50:46, a SMS, the texting app, comes into focus." [X source]

10:00:09 AM ET "Now can we please go to page 6. Your honor I asked permission to publish page 6."

Admitted and published."

"What is depicted on page 6?"

"This shows all of the pictures that were in the Facebook cache."

The powerpoint shows the suicide ribbon in the Facebook cache at 7:48:59 (which was before Sandra's google search).

It also shows 10 pictures of women from Sandra's Facebook page (their profile pictures) and one male.

I recognize one of the profile pictures. [X source]

10:01:35 AM ET "What is on page 7?"

"Artifacts as to the purple ribbon meaning Google search."

"May we publish page 7?"

Admitted and published.

"Here it shows the whole spreadsheet."

This is fascinating.

"How many searches wre shown here?"

"Two."

"Why so many rows?"

"There are multiple traces left behind when someone does a Safari search on Google."

WOW! [X source]

10:02:58 AM ET "Where is the trace stored?"

"The third and fourth colum."

"So one search can be recorded in different places in the phone?"

"Yes."

"And these were two searches?"

"Yes, one for purple ribbon meaning and one for what color is the suicide ribbon."

"What are these autocomplete entries?"

"They are suggested when someone begins to type, but it is not per se what is presented. In the green entry, as someone types what color is, then the automated suggestion comes in, which is the and suicide and then ribbon." [X source]

10:03:43 AM ET "So, these searches, the purple color meaning and the what color is the suicide ribbon were after the caching of the Facebook image?"

"Yes, the cached image came before the search."

Excellent job Brian A. Fogerty. [X source]

10:04:35 AM ET "What is page 8?"

"This is what was cached by Safari while Safari was in use?"

"And that was 7:50AM?"

"Yes that was after the first search and before the second. So this was in the purple ribbon meaning search."

Admitted and published, page 7. [X source]

10:05:05 AM ET "And this is an image that was cached during that search?"

"Yes."

The file name is; o00000001_carved.gif [X source]

10:05:16 AM ET It was a picture of all the different ribbons and what they mean. [X source]

10:05:56 AM ET "What is step data?"

"It could be data from health data, or from what the phone detects, or it could be an attached IOT device like a Fitbit or a runner's pedometer that tracks activity."

"What is IOT?"

"Internet of things." [X source]

10:07:28 AM ET The witness describes her experience with Apple Health step data."

"What kind of apple health data related to steps is detected by an Iphone or Iwatch?"

"The Iphone or Apple Watch as to steps is going to depict the number of steps that the device senses, regardless as to if its the phone and watch, and it will attribute a distance to that number of steps."

"How does the phone detect movement?"

"We don't know the precise methodology, but we know certain things. It uses a type of sense in the phone, and it does not use GPS.:

WOWOWOWO! [X source]

10:11:00 AM ET "When is the movement recorded?"

"After the movement starts, but the device knows it started earlier, so it writes the start and end at the completion fo a movements cycle."

"Where is step data stored?"

"HealthDB_secure SQL lite data base."

"Have you looked at literature about the accuracy of Apple step data?"

"Yes, I have learned that step data is considered fairly accurate. There is an actual percentage error, or APE, that is taken, and then a mean, in the literature by Vendecwick in 20-19, and then a mean accuracy percentage error, in that study which did over 600 trials with 5 different devices in multiple locations, the mean actual percentage error came in at under 2%, however there was variation depending on the location and walking versus running. So in trials of walking, the step count would be lower than the actual numbers of steps taken. Those trials were done at the Netherlands Forensic Institute which is almost like NIST in how they do their trials. Running might lead to an overcount, and that is attributed to arm swing. That's where we see the highest differentials with running while the phone is in hand. They did a second set of trials and they had the people hold the phone right at their body, and they determined that would be much more accurate. That is a 92-98% accuracy range for walking studies."

This woman is a genius. She said that all from memory. [X source]

10:11:30 AM ET "how accurate is Apple Health data?"

"There error rate, across all trials, is under 2% error, but some analogies exist for hand swinging which yields a bigger variation." [X source]

10:12:56 AM ET "Is this another graph of data from the Iphone 12?"

"Yes."

"What type of information is shown here?"

"This graph depicts is a timeline that shows the entire day of Feb 1st from midnight until the next midnight. We see health activity. Distance, steps, different things in the health database, coupled with which applications were in use throughout the day."

This is, hands down, the best slide I have ever seen.

Wow. [X source]

10:14:04 AM ET "What are the gray areas?"

"Times when the phone detects no activity, but it could be sitting on a desk. Then we have all of the detected movements in the deeper blue. In lighter blue it's walking asymmetry and then the distances caculated at the same time." [X source]

10:14:54 AM ET "Is this a subset of the data we just looked at from 4PM to 11:59PM on feb 1st?"

"Yes."

"Can we zoom in on just the graph? Do you see a line at 9:40PM?"

"Yes. That is the very very slim line at the right most part of the health activity middle row." [X source]

10:15:53 AM ET "There's a larger blue area to the left of the 9:40PM entry. What is to left?"

"Another set of steps."

"Are there any steps detected after 9:40PM?"

"There are no steps detected after 9:40PM on February 1st until Feb 4th when the phone was recovered." [X source]

10:16:38 AM ET "What is page 21?"

"This is step data from 4pm to 6pm on Feb 1st as well as data about the doordash application."

"Your honor, I ask to admit page 21."

Admitted and published. [X source]

10:18:58 AM ET "What is page 23?"

"Step data from 4pm to 11:59PM on Feb 1st."

"What do you observe about the information on the far right?"

"The far right hand column is regards to the distances attributed by the health data DB. We can see patterns such as the 530 timestamp where we have 203 steps over 7 minutes. We have a larger amount of distance covered. Whereas when we have less steps at 7:39PM we see 2 steps over seconds and a shorter distance covered, less than 1 meter.,"

"What is the final entry between 9:40PM and the end of the relevant period?"

"The last entry is at 9:40:19 to 9:40:22, during that seconds it records 8 steps and 6 meters." [X source]

10:19:34 AM ET "Page 24 please. We ask to publish."

"You may, admitted and published."

"Ms. Hyde, is a graphical depiction of the information on the previous chart?"

"Yes, this has the last steps at 9:40:22PM." [X source]

10:20:54 AM ET "Page 26 please. Ms. Hyde did you review video footage marked exhibits 46-47?"

"Yes, the goal of my looking at that footage was to match up a potential realistic timeframe to the data in evidence from the timeline analysis I had done on the mobile device, the iPhone 12. In practical terms, I looked for observable items taking place on on the phone that I saw on the footage that I could apply to the timeline."

"We move to admit."

Sidebah! [X source]

10:24:01 AM ET "Jurors, thank you for bearing with us, the next pages are about to be published, 26, 27, 28, these are not pieces of evidence. These are illustrative aides only. The testimony about these next 3 slides is the evidence, not what is on screen." [X source]

10:24:50 AM ET This slide has pictures of the video, as Sandra orders doordash, matched up with data from Sandra's phone showing her texting the DoorDash driver.

The DOJ is using this to formally anchor the 13 minutes of clock drift on the old DVR camera system at Sandra's apartment that was not connected to the internet. [X source]

10:27:01 AM ET 5:14:19PM on the camera is actually 5:01:19PM with the doordash message being sent, on camera, and thus confirming the actual time from Sandra's phone data.

Brilliant. [X source]

10:28:13 AM ET "It is possible that offset could be 12:58 seconds to 13 minutes off."

"Thank you, so notwithstanding the possible 2-4 second offset, were the artifacts on the phone consistent with the video stamp being 13 minutes fast?" [X source]

10:28:48 AM ET "In comparing the content of the iPhone 1l2 to the content on the footage, it appeared there was consistently a 13 minute offset where the camera timestamp was 13 minutes ahead of events on the phone." [X source]

10:29:34 AM ET "What is exhibit 22?"

"The steps and the doordash activity from the phone."

"We move to admit this page."

"Admitted and published." [X source]

10:31:20 AM ET This is the step data, 203 steps exactly, from when Sandra went outside to clean snow off her car around 5:24PM.

Ms. Hyde uses the data to again anchor the 13 minute clock drift on the apartment cameras. [X source]

10:33:27 AM ET Wow, the DOJ now uses Sandra's phone, and video of Farwell, to show Farwell leaving Sandra's apartment at 9:43PM.

The last steps were recorded at 9:40PM on Sandra's phone. [X source]

10:36:40 AM ET "Going back to page 1 please. What was going on with the Iphone 12 after 9:40PM? Did you examine that?"

"Yes, I looked at the battery life of the device."

WOWOW!

This chart shows Sandra was charging her phone right before Farwell arrived. We see a period where the phone is plugged in."

"When was the last time it was plugged in?"

"Around 6PM on Feb 1st, and you can see where that matches up to the rise in the battery percentage where it goes up to 60%. Shortly before that the battery had drained. We see as similar plug in event. Shorter in duration." [X source]

10:37:15 AM ET "What does a steep decline represent?"

"Regular usage of the phone."

Wowowowowowowowowowowowo.

My mind is blown. Reports are moving around the room. People want to see this chart. This is incredible. [X source]

10:38:51 AM ET "When was the phone in use?"

"From 6PM until shortly after 9PM?"

"What happens to the angle of decline after 9PM?"

"The decline is much slower, and the check ins are less frequent, and the phone dies shortly before midnight on February 3rd. That is atypical slow drain from a phone not in use."

"Were things still occurring in the background from 9pm until the phone dies on Feb 3rd?"

"Absolutely, sometime the system does thing passively even without user interaction but it drains the battery slower." [X source]

10:39:33 AM ET "Page 10 now. What is on page 10?"

"This is a larger view of system operating artifacts, things that the phone is tracking for the period of 00:01AM on Feb 1st, through 11:59PM on Feb 2nd. This is a two day window."

Admitted and published. [X source]

10:39:56 AM ET "So there's a lot of data on this slide."

It looks like a classical music score. It is an incredible amount of data. [X source]

10:40:38 AM ET "What is this?"

"This line is depressing any of the buttons on the phone as pressed. The volume button, etc, as to buttons on the screen."

"As to 9:40PM, on Feb 1st, are there any buttons pressed on that phone?"

"No, not until Feb 4th." [X source]

10:43:15 AM ET "We see camera use on Feb 2nd?"

"Yes."

"What triggered the camera use on Feb 2nd."

"An incoming face time call. It turns on the camera so you can use the camera in a face time call. It happens with no user interaction. It's not the camera coming to to foreground it's just the camera app being initated."

"So, back to plugged in, it was not plugged in after 6PM on Feb 1st?"

"Yes, it was plugged in until 6:40PM or so on Feb 1st. That was the last plugged in event."

"Okay, now I want to talk about application focus, as application usage, backlight, and those rows. Have you reviewed the data from those rows after 9:40PM ET on Feb 1st?"

"Yes."

"Are any of them consistent with user action?"

"No, they are not consistent with user action. Only passive action. things like inbound messages, or something like a call that would turn on your backlight. That is the only thing seen in the period after 9:40PM on Feb 1st, passive alerts on the phone." [X source]

10:45:34 AM ET "Early morning hours of Feb 2nd, there's a battery temp warning?"

"Yes, the device checks the battery temp periodically, but that is a function of the device just looking into itself. it is a passive system function like notification alerts."

"When you talk about the absence of user created data after 9:40PM ET on Feb 1st, are there things in the last two columns here that confirm your opinion?"

"The device locked status, we see that last device lock at 9:13PM on Feb 1st, and the device stays locked until close to 11:50PM on Feb 3rd. So that device lock status ends when the device powers down from a complete battery drain."

"So, the device did not unlock on Feb 3rd?"

"Correct, that is what happens when the battery drains. There is no unlock that occurs. The phone's battery died." [X source]

10:46:55 AM ET "What is on page 17?"

"A snapchat that the phone takes when you're using your phone and you switch applications. When you do that, you'll see a snapshot. That gets stored on your phone. Just that screenshot of when you swipe away and change."

Oh my God we see a snap shot from 9:18PM on Feb 1! [X source]

10:48:50 AM ET "This is a screenshot recorded by the phone itself so when a user changes between apps they see what apps they graphically had open."

"Is this black screen a picture?"

"Certain apps, for privacy purposes, chose to show a state image that is consistent. So for the camera, the last photo couldn't show, it would instead show the camera ready screenshot."

It's the camera app. Black entirely in the area where a display would normally show of what the camera was pointed at. You can see the other digital buttons on the screen from the camera."

"So what happened at 9:18PM?"

"The camera app was swiped away. It was the last time the camera app was used." [X source]

10:49:52 AM ET Oh my God Sandra tried to open her phone camera at 9:18PM while Matthew Farwell was inside her apartment.

She only managed to swipe the camera app open and she wasn't actually able to take a picture. [X source]

10:50:21 AM ET "This is an interaction of a user interaction with the device."

"This is the last time stamp of the camera app from user interaction at 9:18PM ET on Feb 1st."

Holy. Shit. [X source]

10:51:12 AM ET "What button would open this app?"

"The camera app can be opened from a locked device. It will appear on the bottom bar. You can access it without unlocked the device." [X source]

10:51:52 AM ET "Thank you, can we go to page 11 please. Ms. Hyde, what is depicted here?"

"These are those same set of system artifacts from before, time period noon until 10PM on Feb 1st, 2021."

Admitted and published. [X source]

10:52:28 AM ET It's another classical music score-looking chart.

"This is a 10 hour period that is in the same format of the 2 day window."

"And the last action is a button press at 9:40PM?"

"Yes." [X source]

10:54:26 AM ET "And the device remains in a locked state from 9:13PM forward?"

"Yes."

"Page 12 please. Is this just another more focused presentation?"

"Yes, it is the same data from 9pm to 10pm on Feb 1st."

Page 12 admitted and published. [X source]

10:55:45 AM ET "Is this the same data from 9 to 9:30PM?"

"Yes."

"What is page 14?"

"This is a graphical representation of that same data from 9:10 to 9:13PM, it's a very specific snapshot." [X source]

10:58:09 AM ET "At 9:13PM the device is locked?"

"Yes, that is the last lock state the phone entered into until the phone died and ran out of battery."

"Now, page 15 please. Ms. hyde, just in general terms, what is the artifact here?"

"Just as we had looked at the camera snapshot, this is the snapshot of the last SMS message before the app swiped way on Feb 1st at 9:13PM."

Page 15 admitted and published.

"What is depicted here is from Feb 1st at 9:13PM?"

"Yes."

"How does this snapshot with a text message to Matthew compare to what the user would have had in the forefront?"

"This is what the user had in the forefront at 9:13PM o n Feb1st, 2021."

Long pause.

It is a text exchange between Sandra and Farwell that says yea I'm here and then door's open. [X source]

10:59:09 AM ET "You talked about an image from 9:18pm, a snapshot, what is depicted in page 16?"

"The period from 9:16 until 9:28, and the data shows the camera snapshot and then we have the backlight coming on, it was previously off, we have the camera app..."

"I'm going to stop you there. Move to admit page 16."

Admitted and published. [X source]

10:59:42 AM ET "The backlight comes on, the camera comes into focus consistent with the snapshot we saw earlier, and that backlight remains off from then until 9:40pm when there is a button press." [X source]

11:01:46 AM ET "What is on this page?"

"Activity from 9:39PM through 9:45PM on Feb 1st?"

"Objection."

"This can be illustrative, it is page 29."

"Okay, jurors this is an illustrative aide."

"When was the last movement?"

"Steps at 9:40:22 seconds."

"When was the button press?"

"Quick depress at 9:40:44 seconds right as the backlight goes off."

"Why does the backlight data keep going until the next day?"

"That is the period for the backlight off. It stays off until Feb 2nd."

"The last button touch before Feb 4 was 9:40:44 seconds on Feb 1st?"

"Yes."

"What time is the male leaving the building?"
"9:43:42 seconds." [X source]

11:02:56 AM ET "Ms. Hyde, the backlight comes on in this device various times after Feb 1st, right?"

"Yes."

"Are any of those backlight events triggered by user action?"

"I looked at the period from 9:40pm on Feb 2st through Feb 3rd when the battery drained, and that was all passive activity. Received snapchats, SMS, etc."

"Thank you." [X source]

11:03:56 AM ET "Your honor, I think the only remaining housekeeping matter is there are some pages in the exhibit we did not exist, but they are just cover pages. 3, 9, 18 and 25."

Admitted and published. [X source]

Morning Recess

11:04:15 AM ET "We will now take our morning break."

"Nothing further from the government for this witness."

All rise for the jury! [X source]

11:05:42 AM ET We'll be back in 20 minutes, thank you.

"Your honor, can we be heard after the break?"

"Umm, I'm not sure why we're clearing the courtroom. Umm, I'm sorry Ms. Daley, you said something."

"Your honor can we just come back early before the break?"

"Yes, that's fine." [X source]

11:21:04 AM ET Five minute extra towel break.

Thank you for your understanding. [X source]

11:29:20 AM ET Okay, I am back.

Farwell and Sandra texted from 9:07 until 9:13.

Sandra's phone locked for the last time until 9:13.

Farwell entered at 9:14.

Sandra's phone took the snapshot of the camera app at 9:18PM.

Sandra's phone registered a button touch and 6 steps at 9:40.

Farwell leaves on camera at 9:43. [X source]

Jessica Hyde — Cross-Examination (Joanne Daley)

11:29:59 AM ET "We resume. Cross?"

It will be Joanne Daley. [X source]

11:31:34 AM ET "I'd like to ask you about something you said on direct. You said app usage vs app focus?"

"Yes."

"My mom always has a million apps open on her phone. So all those apps being opened, is that app usage?"

"No."

"What is app focus vs app usage?"

"App usage is an app that is being interacted with. Active usage. The app is being used. It is doing some function. Not just sitting open not in use."

"Can you use two apps at once?"

"It depends on mobile phone type and OS. On this phone, no." [X source]

11:32:33 AM ET "So we see on Sandra's phone examples of multiple apps on use while one is in focus?"

"I don't think I ever saw that."

"So all of these windows were closed out then."

"These aren't windows. They are applications. Also, no, they can be backgrounded. It does not mean they were closed." [X source]

11:33:18 AM ET "What about when you search on Safari? Does that register in your device as when you searched or when you opened Safari?"

"Those are two different artifacts. You would have them each stored differently." [X source]

11:35:11 AM ET "Is this a screenshot, from 9:18PM, taken by the user?"

"No, it is an application that is open but being moved out of focus in the OS."

"So would it mean the camera app was open and you swipe out of it, the system stores a screenshot?"

"Yes, if you switch to another app."

"So, like on an iPhone, if you scroll sideways as opposed to up, this is what would be stored?"

"Yes, it's when you scroll back and forth between the apps on your phone. You're seeing what apps are currently open. It's the screenshot you see when you're swiping across. Very clear." [X source]

11:36:04 AM ET "Is this a screenshot?"

"No, it's a snapshot. That is often confused with a screenshot. This is something that is taken by the system. It is the last thing shown on the messaging or camera app when they switched apps."

"So if you go into your apps, I'm going to use my finger here, and you swipe, you are keeping the app open still?"

"Yes." [X source]

11:37:13 AM ET I think Rachael Rollins may have been thrown out of court earlier today and not welcome back after her phone went off during a key part of Jessica Hyde's testimony.

Rollins phone went off loudly, interrupted testimony, and then a Marshall collected her bags.

She never returned. [X source]

11:41:27 AM ET "Aggregate is not the right word to use here?"

"Well, I didn't say aggregate."

"Yes, I know, I'm saying aggregate and I'm asking if that's the wrong word to use?"

"Oh, well, yes."

They are talking about the amount of health data stored by Apple devices.

Joanne Daley is doing her best here. [X source]

11:42:01 AM ET "Can an iPhone sometimes miscalculate the number of steps?"

"Yes, it can underreport steps taken while talking. It depends on the location the phone was at."

"Can an arm swing affect that?"

"yes, when extreme." [X source]

11:44:55 AM ET Jessica Hyde, and her chart of Sandra Birchmore's phone battery life on Feb 1, 2021, by the one and only Don Drake.

Simply incredible.

I watched that man draw that chart from memory.

I am in the presence of greatness. https://t.co/wF65GV4jTU [X source]

11:46:28 AM ET Jessica Hyde, and her chart of Sandra Birchmore's phone battery life on Feb 1, 2021, by the one and only Don Drake.

Simply incredible.

I watched that man draw that chart from memory.

I am in the presence of greatness.

Truly. https://t.co/F9COQfhxcO [X source]

11:47:22 AM ET Joanne Daley asks the witness how the witness calculated the clock drift on the DVR system from Aegis.

Joanne Daley wanted to ask about if the DoorDash man was seen on the video when Sandra went outside.

The witness says she cannot tell if a man is standing outside the door. [X source]

11:48:34 AM ET "You attribute six steps to the phone at 5:30:22PM?"

"Yes, that is the time from the device."

"Okay, understood."

"So she returns to the elevator at 5:33:31?"

"That's when the phone begins lifting and that is my denotation." [X source]

11:51:07 AM ET "Did you do an extraction of the IPhone?"

"Yes."

"But did you do the initial extraction?"

"No, not the initial extraction."

"So the extraction you saw on direct was September of this year?"

"You'd have to show me that I don't recall any data extractions from September of 2026."

"I'm sorry, I'm confused, I thought you said you did an extraction after you got the Apple Watch?"

"That was in October."

"Oh, okay." [X source]

11:52:01 AM ET "Did you make an attempt in 2025?"

"No, that was my test device that I mentioned had stopped being in use in 2025. That was a test device. Not related to this case."

"Oh, okay, so you tried to do something with the same models but not the same devices."

"Yes, I validated the methodology." [X source]

11:54:42 AM ET "Counsel and Ms. Hyde, if we could not talk over each other, for the benefit of the court reporter?"

"Sorry, your honor." [X source]

11:57:49 AM ET "To be clear, this attempt to do the data acquisition on the apple Watch happened 5 and a half years the event?"

"Yes." [X source]

12:00:29 PM ET "Did the defense object to your October 2026 testing?"

"Objection."

"Sustained." [X source]

12:01:22 PM ET "You tried getting into the Apple Watch?"

"Yes."

"Then you tried to synch it with the IPhone?"

"Yes."

"In between the two times you said defense counsel agreed to that synching part?"

"Yes."

"Nothing further." [X source]

Jessica Hyde — Redirect Examination

12:01:44 PM ET "Redirect!" [X source]

12:02:46 PM ET "Did the government ask you to retry the acquisition of data on the Apple Watch?"

"Yes."

"You said previously that the acquisition that you could do was a logical extraction?"

"Yes."

"And that's what you could do with tech available now?"

"Yes."

"And no steps or heartbeat data were on the Watch from Feb, 1, 2021?"

"No not in that extraction." [X source]

12:04:41 PM ET "Is this video footage that you reviewed?"

"Yes."

"We can take that down for a second."

"Can we go page 26. The two second window Ms. Daley asked you about is within the variation you described on direct?"

"Yes." [X source]

12:06:27 PM ET "Ms. Hyde, the last button press is around 9:40PM on Feb 1, 2021, correct?"

"That is correct."

"And you said there is no more user initiated activity after that point?"

"That is correct."

"Is it fair to say that the application use information on Feb 2nd is not user initiated data?"

"That is correct."

"Can you explain how that happens?"

"Objection, scope."

"Overruled given the questions asked on cross."

"When a message comes inbound, several things happen on the device. The application will be used, the backlight will come on, the application will be stated as in focus because it comes up on the screen or a notification comes up."

"In other words, application usage does not necessarily indicate user usage."

"Correct." [X source]

Jessica Hyde — Recross and Government Rests

12:08:29 PM ET "Nothing further."

"Recross?"

"Briefly, your ho0nor, page 26 of exhibit 412 please. Ms. Hyde can you see this slide?"

"Yes."

"Here you have the Iphone 12 taking steps at 5:01:59and 5:02:07, is that right?"

"No, those timestamps are video offset timestamps. The time period of the steps that are taken there are reflected in the phone timestamps."

"Does this slide show any steps between those times?"

"Yes, through 5:01:37 seconds."

"But there's no steps between 5:01:37 and 5:30:37?"

"There are no steps recorded on the phone during that time." [X source]

12:09:39 PM ET "But is she getting on the elevator at 5:02?"

"She is pressing the button but not stepping into the elevator at 5:02."

"Did she get back to her apartment..."

"Objection."

"Sustained."

"Where was Sandra Discovered on Feb 4th?"

"That is outside the scope of my area."

"Okay, and the government asked you to test the apple Watch?"

"Objection. Withdrawn."

"I don't recall the exact date. The days before thast.

"Nothing further." [X source]

12:09:59 PM ET "Your honor, the government rests!" [X source]

Post-Court Updates — Not a Continuous Courtroom Account

The following posts describe Grant's activities and observations outside court. References to other reporters' coverage are not independent reporting of the proceedings.

12:23:31 PM ET Waiting outside for Jessica Hyde!

I shall return shortly! [X source]

12:59:40 PM ET Still looking for Jessica Hyde.

Michelle has the motion for directed verdict arguments.

My towel hands hurt from the cold. [X source]

1:36:42 PM ET We just saw Jessica Hyde leave in a white SUV with New York plates.

She had an escort.

Lights flashing.

One federal car one state car. [X source]

1:40:54 PM ET Okay, I am packing up for the day. I will be live later with some thoughts.

God bless you all!

Thank you for your support of my work!

What a whirlwind of a day!

Cashapp: https://t.co/a55YLItTVE

Venmo: https://t.co/aS1seZF8GX

Paypal = https://t.co/T02firtvgK https://t.co/JVPhJMBlaB [X source]

Source & Editorial Notes

Source corpus: October 28, 2026 Grant-authored X author-search JSONL, queried over a 5:00 AM–3:00 PM ET window; 153 unique status IDs, including retweets and non-courtroom commentary.

Selection: 125 in-court or structurally relevant statuses from 8:45:52 AM to 12:09:59 PM ET, plus four post-court updates. Unrelated posts, retweets, fundraising-only posts, and incidental replies are not reproduced in the courtroom narrative.

Witness organization: Preliminary exhibit matters and a brief recall of Heidi Kelsch precede Jessica Hyde's direct, cross by Joanne Daley, redirect, and recross. The prosecution rests at 12:09:59 PM ET according to Grant's contemporaneous post.

Coverage limitation: The author-search corpus does not provide a continuous firsthand account of subsequent defense proceedings. Reports by other journalists that Grant retweeted are not silently incorporated as his testimony notes.

Source fidelity: Original text, apparent spelling errors, repeated material, personal commentary, and quotations are preserved as retrieved. The X posts are contemporaneous reporting, not a certified verbatim court transcript.

Exhibits: Post-order handling applies: exhibit descriptions in the reporting are retained, but no exhibits are acquired, embedded, or appended.

Chronology: Times shown are the X post creation times converted to America/New_York, not independently verified timestamps of the events described.

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